

Section III: State Agency Procedure Manual

I. State Vendor and Farmer Management

F. Use of WIC Acronym and Logo

Purpose

Ensure enforcement of WIC requirements and protect against infringement of service marks. The WIC acronym and logo are service marks owned by the USDA, and all rights therein and goodwill pertaining thereto belongs exclusively to USDA.

Policy

Montana WIC authorized retailers and food manufacturers are not permitted to use the WIC service mark or logo to avoid giving the impression that the business is affiliated with or sponsored by the State agency, USDA or the WIC Program. They are permitted to create store shelf tags using the WIC service mark or logo with prior MT WIC State Office approval.

1. WIC acronym, service marks and logo may not be used in a retailer or manufacturer name.
2. WIC acronym, service marks and logo may not be used on a manufacturer's goods label, packaging, tag, or container.
3. Authorized retailers and product manufacturers may not apply stickers, tags, or labels having the service marks thereon to WIC-approved products.
4. The Montana WIC Program does not issue shelf tags, nor require their use by WIC authorized retailers. However, retailers may use their own generated shelf tags including the service marks to identify WIC-approved products if they have been submitted to the State office and received prior approval.
5. Retailers may use the WIC acronym, service marks and logo in advertising or promotional materials used to inform the public that the retailer is WIC-authorized, such as the "We Accept WIC" decal provided by Montana WIC. Retailers and manufacturer contractors may not use the acronym, service marks and logo in any other advertising or promotional literature unless it is submitted to and approved by the State WIC office.